

S4 Drugs And Magic Remedies Act

Title: Scrutiny of Misleading Advertisements Relating to Drugs

Jurisdiction: India

Category: Advertising

Source Citation: Drugs and Magic Remedies (Objectionable Advertisements) Rules, 1955, Rule 3

Plain English Summary:

State Government ने अधिकृत केलेल्या व्यक्तीला एखादी drug advertisement Section 4 चे उल्लंघन करते असे वाटल्यास, तो manufacturer, packer, distributor किंवा seller कडून product ची composition, ingredients किंवा इतर आवश्यक माहिती मागवू शकतो. संबंधित व्यक्तीने ही माहिती ठरलेल्या वेळेत देणे आवश्यक आहे.

The Exact Legal Text:

Any person authorized by the State Government in this behalf may, if satisfied that the advertisement relating to a drug contravenes the provisions of sec.4, by order, require the manufacturer, packer, distributor or seller of the drug to furnish, within such time as may be specified in the order, such information regarding the composition of the drug or the ingredients thereof or such information in regard to that drug as he deems necessary for holding the scrutiny of the advertisement and where such order is made, it shall be the duty of the manufacturer, packer, distributor or seller of the drug to which the advertisement relates to comply with the order.

Keywords/Triggers:

misleading advertisement scrutiny, manufacturer information, product composition, drug ingredients, packer responsibility, distributor responsibility, DMROA Rules Rule 3

Title: Definition of Advertisement

Jurisdiction: India

Category: Advertising

Source Citation: Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954, Section 2(a)

Plain English Summary:

An advertisement includes any notice, circular, label, wrapper, or other document used to promote a drug or magic remedy. It also includes announcements made through oral

communication or any other means. An Ayurvedic business must therefore ensure that promotional messages, product labels, brochures, websites, and verbal claims follow the Act.

The Exact Legal Text:

“advertisement” includes any notice, circular or other document and any announcement made orally or by any means of producing or transmitting light, sound or smoke;

Keywords/Triggers:

advertisement definition, promotional material, product label, drug advertisement, oral advertisement, advertising document, Ayurvedic product promotion

Title: Definition of Drug

Jurisdiction: India

Category: Advertising

Source Citation: Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954, Section 2(b)

Plain English Summary:

The term “drug” includes medicines and substances used for diagnosis, treatment, mitigation, or prevention of diseases or disorders in human beings or animals. It also includes articles intended to affect the structure or function of the body. Ayurvedic and traditional medicines may fall within this definition when they are promoted for such purposes.

The Exact Legal Text:

“drug” includes—

(i) a medicine for the internal or external use of human beings or animals, and

(ii) any substance intended to be used for or in the diagnosis, cure, mitigation, treatment or prevention of any disease or disorder in human beings or animals;

Keywords/Triggers:

drug definition, Ayurvedic medicine, treatment claim, disease prevention, medicinal product, internal use, external use